PANJAB UNIVERSITY,CHANDIGARH

(Estted. under the Panjab University Act VII of 1947-enacted by the Govt. of India)

FACULTY OF ARTS

SYLLABI

FOR

HUMAN RIGHTS AND VALUE EDUCATION
(ADD-ON COURSE)
CERTIFICATE, DIPLOMA & ADVANCED DIPLOMA
EXAMINATIONS 2012

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PANJAB UNIVERSITY, CHANDIGARH

Outlines of tests, syllabi and courses of reading for Certificate, Diploma and Advanced Diploma in **Human Rights and Value Education (Add-on Course)** for the examination of 2012.

CERTIFICATE COURSE

PAPER – A: FUNDAMENTALS OF HUMAN RIGHTS AND DUTIES – I

M. Marks : 100
Theory : 75 Marks
Practical : 25 Marks
Time : 3 Hours

Unit I – Understanding Concepts of Human Rights and Duties

a) i) Basic concepts: rights, duties; ii) Nature of rights: absolute/reasonable; universal/relativistic; discriminatory/justifiably differential; iii) Linkage with core concepts of liberty, equality, fraternity and justice.

b) Classification of rights and duties: i) Rights – moral, social, cultural, economic, civil and political; ii) Duties – towards self, family, community, society, nation/state, humankind and mother earth; iii) Interrelationship of rights and duties – areas of harmony and conflict.

Unit II – Historical Evolution and Theoretical Perspectives

Tracing the history of the development of the concept of Human Rights prior to the Universal Declaration of Human Rights (1948).

Perspectives on Human Rights: i) Natural Rights; ii) Legal/Positivist; iii) Liberal; iv) Marxist; v) Sociological

PAPER – B: FUNDAMENTALS OF HUMAN RIGHTS AND DUTIES – II

M. Marks : 100
Theory : 75 Marks
Practical : 25 Marks
Time : 3 Hours

Unit I – Human Rights and the Development Debate

a) The development discourse: modernization and globalization

b) Alternative models/critiques of development:
- i) Gandhian
- ii) Environmental Sustainability
- iii) Feminist
- iv) Neo-Marxist (Dependency)

Unit II – General Problems Relating to Human Rights

a) Poverty and illiteracy

b) Discrimination – Caste, Class and Gender

c) Ecological degradation

d) Non-sustainability of Culture – Cultural erosion

Mode of Examination: There will be two theory Papers A and B, each of 75 marks and Practical for 25 x 2 = 50 marks.

In both Papers the students will be required to attempt 5 essay type questions of 15 marks each out of 8 questions in all to be set from Unit I and Unit II.

For Practical, the students will be required to visit some place like jail, mental asylum or old age home. They will interview the affected persons and will be required to make a survey report for the same.

ESSENTIAL READINGS

Baxi, Upendra (2002) *The Future of Human Rights*. New Delhi: Oxford University Press.

Dube, M. P. and Neeta Bora, (ed.) (2000) Perspectives on Human Rights New Delhi: Anamika Publishers.

Sanajaoba, N. (2000) *Human Rights in the New Millennium*. New Delhi: Manas Publications.

Vadkar, Praveen, (2000) *Concepts, Theories and Practice of Human Rights*. New Delhi: Rajat Publications.

FURTHER READINGS

Parekh, P. H. (2005/6) *Human Rights Year-Book – 2005*, New Delhi: Universal Law Publishing Co.

Rehman, M. M. et al. (2000) *Human Rights and Human Development: Concepts and Contexts*. New Delhi: Manak Publications.

Zarsky, Lyuba (ed.) (2002) *Human Rights and the Environment*. London: Earthscan Pub.

DIPLOMA COURSE

PAPER – A: HUMAN RIGHTS THEORY AND PRACTICE: INDIAN CONTEXT – I

M. Marks : 100
Theory : 75 Marks
Practical : 25 Marks
Time : 3 Hours

Unit I – Origin and Development of Human Rights in India

a) Rights Discourse in Indian National Movement

b) i) Making of the Constitution and Human Rights Concerns

ii) State of Human Rights and Duties in Contemporary India

Unit II – Human Rights and Constitutional-Legal framework in India

a) Fundamental Rights and Duties

b) Directive Principles of State Policy

c) Protection of Human Rights Act – NHRC, SHRC

PAPER – B: Human Rights Theory and Practice: Indian Context – II

M. Marks : 100
Theory : 75 Marks
Practical : 25 Marks
Time : 3 Hours

Unit I – Enforcement and Redressal Mechanism

a) i) National Human Rights Commission; ii) State Human Rights Commission; iii) Role of Executive and Judiciary

b) Civil Society Initiatives – Ideology and Social Basis

Unit II – Human Rights Law, Issues and Movement

a) Women and Children

b) Aged

c) Disabled

d) Bonded labor and unorganized labor

e) Environment and Sustainable Development

f) Rights of the Communities (Minorities and Ethnic Groups)

Mode of Examination: There will be two theory papers A and B, each of 75 marks and Practical for 25 x 2 = 50 marks.

In both papers the students will be required to attempt 5 essay type questions of 15 marks each out of 8 questions in all to be set from Unit I and Unit II (Total 75 marks).

In addition, for Practical, the students will be asked to write a case law/study based on the original life story of a person (50 marks).

ESSENTIAL READINGS:

Austin, Granville (2000) *Working of a Democratic Constitution: The Indian Experience*, New Delhi: Oxford University Press.

Kannabiran, K. G. (2003) *The Wages of Impunity: Power, Justice and Human Rights*, New Delhi: Orient Longman.

Ray, Arun, (2004) *National Human Rights Commission in India: Formation, Functioning and Future Prospects*, New Delhi: Atlantic.

Sathe S. P., (2004) *Judicial Activism in India*, New Delhi: OUP.

FURTHER READINGS:

Baxi, Upendra (2002) *The Future of Human Rights*, New Delhi: OUP.

Kothari, Smitu and Harsh Sethi (ed.) (1991) *Rethinking Human Rights: Challenge for theory and Action*, Lokayan, Delhi.

Nirmal J. Chiranjivi, Human Rights in India, OUP, New Delhi, 2006.

South Asia Human Rights Documentation Centre, Introducing Human Rights: An Overview OUP, New Delhi, 2006.

ADVANCED DIPLOMA

PAPER– A: HUMAN RIGHTS THEORY AND PRACTICE: INTERNATIONAL SCENARIO– I

M. Marks : 100
Theory : 75 Marks
Practical : 25 Marks
Time : 3 Hours

Unit I – International Standards – I

a) Universal Declaration of Human Rights (1948)

b) International Covenant on Civil and Political Rights (1966)

c) International Covenant on Social, Cultural and Economic Rights (1966)

Unit II – International Standards – II

a) International Convention on Elimination of All Forms of Racial Discrimination (ICERD)

b) Convention on Elimination of All Forms of Discrimination Against Women (CEDAW)

c) Convention on Rights of Child (CRC)

d) Convention on Prevention and Punishment of the Crime of Genocide

PAPER– B : HUMAN RIGHTS THEORY AND PRACTICE: INTERNATIONAL SCENARIO– II

M.Marks:100
Theory : 75 Marks
Practical : 25 Marks
Time : 3 Hours

Unit I – International Mechanisms

a) The UN Commission on Human Rights

b) The European Commission on Human Rights

c) The American Commission on Human Rights

d) The African Commission on Human Rights

Unit II – Practice With Regard to Various Conventions

a) Women and Children

b) Sustainable Development: Preserving Environment and Culture

c) Terrorism

d) Rights of Indigenous People

Mode of Examination: There will be two theory papers A and B, each of 75 marks and Practical for 25 x 2 = 50 marks.

In both papers the students will be required to attempt 5 essay type questions of 15 marks each out of 8 questions in all to be set from Unit I and Unit II (Total 75 marks).

In addition, for Practical, the students will be required to submit a project report (50 marks).

ESSENTIAL READINGS

Alston, Phillip, ed., *The United Nations and Human Rights*: A Critical Appraisal (Oxford: Clarendon Press, 1992).

Langley, Winstone E., *Encyclopedia of Human Rights Issues since 1945* (London: Fitzroy Dearborn Publishers, 1999).

Verma, R.S., Human Rights: *Burning Issues of the World*, Volumes I, II and III (Delhi: Radiant Publishers, 2000).

FURTHER READINGS

Lauterpacht, Hersch, *An International Bill of the Rights of Man* (New York: Columbia University Press, 1945).

Morsink, Johannes, *The Universal Declaration of Human Rights: Origins, Drafting and Intent* (Philadelphia: University of Pennsylvania Press, 1999).

Vijapur, A.P., *The United Nations at Fifty: Studies in Human Rights* (New Delhi: South Asian Publishers, 1996)

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